

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rushelle Sharpe	Team: Team # 5	CCRB Case #: 201200380	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 01/06/2012 9:15 PM	Location of Incident: inside of § 87(2)(b) and at the 77th Precinct stationhouse	Precinct: 77	18 Mo. SOL 7/6/2013	EO SOL 7/6/2013	
Date/Time CV Reported Mon, 01/09/2012 2:50 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 01/09/2012 3:51 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Craig	26996	945623	077 PCT
2. SGT Jerry Garcia	02320	936643	077 PCT
3. Officers			077 PCT
4. POM Alex Viera	14168	945080	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Behan	06134	947896	077 PCT
2. POM Deven Okvist	05730	947309	077 PCT
3. SGT Robert Maloney	05057	930640	077 PCT
4. POM Denis Omahoney	05585	947313	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Patrick Craig	Force: Inside of § 87(2)(b) in Brooklyn, PO Patrick Craig pointed his gun at § 87(2)(b) and an individual named § 87(2)(b)	§ 87(2)(b)
B.POM Alex Viera	Force: Inside of § 87(2)(b) in Brooklyn, PO Alex Viera used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Patrick Craig	Force: Inside of § 87(2)(b) in Brooklyn, PO Patrick Craig used physical force against § 87(2)(b)	§ 87(2)(b)
D. Officers	Force: Inside of § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	§ 87(2)(b)
E.SGT Jerry Garcia	Abuse: Inside of § 87(2)(b) in Brooklyn, Sgt. Jerry Garcia authorized the strip-search of § 87(2)(b)	§ 87(2)(b)
F.SGT Jerry Garcia	Abuse: At the 77th Precinct stationhouse, Sgt. Jerry Garcia authorized the strip search of § 87(2)(b)	§ 87(2)(b)

Case Summary

On January 9, 2012, § 87(2)(b) filed an in-person complaint at the 77th Precinct stationhouse (encl. 3A-3B). On January 10, 2012, he filed a secondary complaint regarding the same incident on the CCRB's online website (encl. 4A-4D).

On January 6, 2012, at approximately 9:15 p.m., § 87(2)(b) an individual named § 87(2)(b) (last name unknown), § 87(2)(b) and § 87(2)(b) § 87(2)(b) were inside of § 87(2)(b) in Brooklyn, when PO Patrick Craig, identified by name by § 87(2)(b) and assigned to the 77th Precinct, PO Peter Behan, PO Deven Okvist, PO Denis O'Mahoney, Sgt. Jerry Garcia, and Sgt. Robert Maloney, all identified by the investigation and assigned to the 77th Precinct at the time of the incident, entered the location. § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were all arrested. The following allegations resulted:

Allegation A – Force: Inside of § 87(2)(b) in Brooklyn, PO Patrick Craig pointed his gun at § 87(2)(b) and an individual named § 87(2)(b) § 87(2)(g)

Allegation B – Force: Inside of § 87(2)(b) in Brooklyn, PO Alex Viera used physical force against § 87(2)(b)

Allegation C – Force: Inside of § 87(2)(b) in Brooklyn, PO Patrick Craig used physical force against § 87(2)(b) § 87(2)(g)

Allegation D – Force: Inside of § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b) § 87(2)(g)

Allegation E – Abuse of Authority: Inside of § 87(2)(b) Sgt. Jerry Garcia supervised the strip-search of § 87(2)(b) § 87(2)(g)

Allegation F – Abuse of Authority: At the 77th Precinct stationhouse, Sgt. Jerry Garcia authorized the strip search of § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, 6'2" tall, 220 lbs., with brown hair and brown eyes. § 87(2)(b).

Statements to Medical Personnel

§ 87(2)(b) visited § 87(2)(b) on § 87(2)(b), where he informed hospital personnel that he had been in an altercation with the NYPD, and was assaulted with kicks and punches to his head, and that he had been fighting (encl. 15A-15S).

CCRB Statement

§ 87(2)(b) provided a brief statement when he filed his complaint at the 77th Precinct stationhouse on January 9, 2012 (encl. 3A-3B). He also provided a narrative when filing the complaint online on January 10, 2012 (encl. 4A-4D). § 87(2)(b) was interviewed at the Brooklyn Detention Complex in Brooklyn on April 6, 2012 (encl. 6A-6D). § 87(2)(g) . On January 9, 2012, at approximately 9:15 p.m., § 87(2)(b) entered a bodega located at § 87(2)(b) in Brooklyn. § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) all identified by the investigation, were inside the bodega playing cards on the first floor. § 87(2)(b) acknowledged that he had a marijuana joint on his person but did not remove it prior to entering the bodega. He did not admit to having any other drugs on his person. After entering the bodega, § 87(2)(b) went downstairs to the where he met his friend, § 87(2)(b). He did not know § 87(2)(b)'s full name. § 87(2)(b) and § 87(2)(b) prepared to smoke the marijuana joint and were the only two people downstairs.

§ 87(2)(b) was seated on a crate when PO Patrick Craig, identified by name by § 87(2)(b), entered the basement with his gun drawn. PO Craig was a white male, 5'11"-6'0" tall, average to medium build, dark hair, in uniform, 25 to 30 years old. § 87(2)(b) yelled, "Oh shit, the pigs!!" PO Craig instructed both § 87(2)(b) and § 87(2)(b) to get on the ground with his gun pointed at them. § 87(2)(b) complied with PO Craig's instructions while § 87(2)(b) did not. PO Craig repeated his instruction but § 87(2)(b) did not comply. PO Craig attempted to pull § 87(2)(b) down to ground. At this time, PO Alex Viera, identified by the investigation, kicked § 87(2)(b) in his back from the stairs. PO Viera was a white or Hispanic male, 5'8"-5'9" tall, with a chubby build, with a thin beard, in uniform, in his 30's. After being kicked, § 87(2)(b) fell face down onto the ground. PO Craig kicked § 87(2)(b) on his right temple. § 87(2)(b) shrank into a fetal position and covered his head with his hands. § 87(2)(b) speculated that more officers entered the basement as he then felt multiple kicks simultaneously to his back, right rib cage, and the back and sides of his head. § 87(2)(b) suffered bruises on the front of his forehead from hitting his head against the ground as the officers kicked him. § 87(2)(b) was unable to specify which officers were kicking him. § 87(2)(b) was handcuffed and left on the ground. Several officers, whom § 87(2)(b) could not describe, searched a small kitchen, cabinets, and a small hallway located in the basement. Sgt. Jerry Garcia, identified by the investigation, entered the basement and approached § 87(2)(b). Sgt. Garcia was a white or Hispanic male, 6'0"-6'2" tall, with a chubby build, a bald head, wearing a hooded sweater with a school logo and jeans, in his 30's. Sgt. Garcia unbuckled § 87(2)(b)'s belt, pulled down his pants, removed his boxers, and instructed § 87(2)(b) to squat. § 87(2)(b) complied and his underwear and pants were pulled up. § 87(2)(b) did not allege a strip search in the basement in either of his statements on January 9, 2012, or January 10, 2012. § 87(2)(b) was escorted upstairs and placed in a police vehicle with § 87(2)(b) and § 87(2)(b) for transport to the 77th Precinct stationhouse. During his interaction with officers inside the basement, § 87(2)(b) denied pulling a knife against any officer and denied attempting to discard any narcotics.

Once at 77th Precinct stationhouse, a second strip search was conducted by PO Craig and two officers whom § 87(2)(b) could not describe. § 87(2)(b) was instructed to remove his clothing and underwear and squat. Nothing was recovered from this search. § 87(2)(b) did not allege this second strip search in either of his prior statements. § 87(2)(b) got dressed and was escorted to a holding cell. § 87(2)(b) remained there until he was transported to Brooklyn Central Booking where he remained for two to three days. While in custody, § 87(2)(b) was transported to § 87(2)(b) to obtain treatment for a headache and swelling to his face. He was diagnosed with head trauma and prescribed aspirin. § 87(2)(b) went back to Central Booking after being treated and was bailed out some time afterwards.

Attempts to Contact Civilians

Upon being interviewed, § 87(2)(b) was unable to provide the full name and any contact information for § 87(2)(b). Field work to the incident location, conducted on May 11, 2012, yielded negative results for any identifying information or contact information for § 87(2)(b) or the owner of the store. § 87(2)(g)

Additionally, § 87(2)(b) was unable to provide full names and any contact information for § 87(2)(b), § 87(2)(b), and § 87(2)(b). Arrest documents provided date of births and mailing addresses for these individuals. Please call letters were sent to these addresses on May 11, 2012. A Coles search, conducted on May 11, 2012, did not confirm § 87(2)(b) and § 87(2)(b) residing at their given addresses. The search also provided a telephone number assigned to § 87(2)(b)'s address. A LexisNexis search, conducted on May 11, 2012, confirmed the initial addresses for § 87(2)(b) and § 87(2)(b) provided an address for § 87(2)(b) a telephone number for § 87(2)(b)'s address, as well as a secondary address for § 87(2)(b). Field work conducted on May 11, 2012, yielded negative results for any additional contact information for these individuals. The CCRB contacted the numbers found for § 87(2)(b) and § 87(2)(b) on June 11, 2012, but the number for § 87(2)(b) was disconnected, and a male individual confirmed that § 87(2)(b) could not be reached at the number found for him. An additional set of please call letters were set to each address found for § 87(2)(b) and § 87(2)(b) on June 11, 2012. A Whitepages search and Coles search, conducted on June 11, 2012, yielded negative results for any additional contact information for § 87(2)(b). On June 19, 2012, and September 5, 2012, letters sent to § 87(2)(b) and § 87(2)(b) were returned to the CCRB, citing that the person to whom the letter was addressed was not known. § 87(2)(g)

NYPD Statements:

Subject Officer: PO PATRICK CRAIG

- PO Patrick Craig is a § 87(2)(b)-old white male, 6'0" tall, 190 lbs., with brown hair blue eyes.
- PO Craig worked from 5:30 p.m. to 2:05 a.m., assigned to conditions, with PO Alex Viera and PO Deven Okvist. He was dressed in uniform and assigned to marked police vehicle 8556.

Memo Book

On January 6, 2012, at 9:15 p.m., a business inspection was conducted at § 87(2)(b). At 9:53 p.m., PO Craig arrested § 87(2)(b). At 10:10 p.m., PO Craig arrived at the 77th Precinct stationhouse (encl. 8A-C).

NYPD Complaint and Arrest Reports

§ 87(2)(g)

NYPD Property Vouchers

On January 6, 2012, PO Craig entered twenty-one twists of crack-cocaine, two burnt marijuana cigarettes, a black handled ten-inch kitchen knife into log § 87(2)(b) as arrest evidence against § 87(2)(b) (encl. 8H-8M).

CCRB Statement

PO Patrick Craig was interviewed at the CCRB on July 18, 2012 (encl. 8N-8P). On January 6, 2012, at approximately 9:15 p.m., PO Craig (the operator of the vehicle) and his partners, PO Alex Viera and PO Devan Okvist were driving when PO Okvist observed a male, identified by the investigation as § 87(2)(b) outside of a bodega at § 87(2)(b) smoking a marijuana cigarette. The officers determined it was marijuana from the odor being emitted. Upon observing the officers, § 87(2)(b) attempted to hide the cigarette behind his back and then entered the bodega. PO Craig, PO Viera, and PO Okvist followed into the bodega. Upon approaching the entrance, PO Craig observed approximately 10 people inside watching television. The individuals inside were drinking from open beer bottles and other open containers, including clear cups, and smoking marijuana, indicated to PO Craig by the smell emitting from the bodega. The officers contacted Sgt. Jerry Garcia, identified by name by PO Craig, and informed him of the situation. Sgt. Garcia confirmed a business inspection of the store and put a report over the radio. The officers entered the bodega and arrested § 87(2)(b) by the front door. The marijuana cigarette was recovered from his hand upon arrest. The other individuals inside the bodega paid no attention to the officers as they requested identification. As PO Viera and PO Okvist continued to request identification, PO Craig walked through the crowd to request identification from individuals at the rear of the bodega.

PO Craig observed an open door that led to a basement. He heard a noise that he believed was music or an individual humming, coming from downstairs. PO Craig proceeded downstairs to investigate the noise. PO Craig observed a male, identified by the investigation as § 87(2)(b) sitting and counting money. § 87(2)(b) had a lit cigarette in his mouth, which PO Craig believed to be marijuana due to the odor it emitted. PO Craig asked him to stand up and turn around. There were no other individuals in the basement other than PO Craig and § 87(2)(b). § 87(2)(b) stood up, sucked the cigarette into his mouth, and then ran to a small kitchenette area. § 87(2)(b) emerged with a kitchen knife, approximately ten inches long, in his right hand. PO Craig kicked a folding table in between § 87(2)(b) and himself to create space between them. With his weapon drawn and pointed at § 87(2)(b), PO Craig yelled, "Police" and instructed § 87(2)(b) multiple times to drop the knife but he did not comply. PO Craig requested additional officers over the radio. PO Viera and PO Okvist came downstairs and § 87(2)(b) dropped the knife and held his open hands in front of him. PO Craig re-holstered his weapon and went to grab one of § 87(2)(b)'s wrists to place him under arrest. As PO Craig grabbed his wrist, § 87(2)(b) tried to run up the stairs. PO Viera and PO Okvist assisted PO Craig as he attempted to place § 87(2)(b) under arrest. The officers and § 87(2)(b) went to the ground during the struggle. § 87(2)(b) continually struggled, flailed his arms, spat at the officers, did not comply with their instructions to stop resisting or surrender his hands. The officers eventually handcuffed § 87(2)(b). No officer kicked § 87(2)(b) in the back. PO Craig did not kick § 87(2)(b) in the head or about his body. No officer kicked, stomped, or punched § 87(2)(b) while he was on the ground. § 87(2)(b) was not strip searched inside the basement.

After placing § 87(2)(b) in handcuffs, he was escorted upstairs. While on the stairs, § 87(2)(b) began to fidget at his waist. With his hands handcuffed behind his back, § 87(2)(b) pulled a clear plastic lunch bag from his waistband, and threw it to his left. PO Craig, who was directly behind § 87(2)(b), recovered the plastic bag which contained approximately 21 twists of crack-cocaine. Sgt. Garcia and additional supervisors, whom PO Craig could not specify, arrived on scene. PO Craig was transported to the 77th Precinct. § 87(2)(b) was strip searched at the stationhouse after his arrest as based on the concealed narcotics he had attempted to dispose of earlier.

Subject Officer: PO ALEX VIERA

- PO Alex Viera is a § 87(2)(b)-old Hispanic male, 5'7" tall, 180 lbs., with black hair and brown eyes.

- *On January 6, 2012, PO Viera worked from 5:30 p.m. to 2:05 a.m., assigned to conditions with PO Patrick Craig and PO Deven Okvist. He was dressed in uniform and assigned to marked police vehicle 5100.*

Memo Book

On January 6, 2012, at 9:14 p.m., a business inspection was conducted at § 87(2)(b) in Brooklyn. At 9:53 p.m., PO Craig and PO Behan both had an arrest (encl. 9A)

CCRB Statement

PO Alex Viera was interviewed at the CCRB on May 8, 2013 (encl. 9B-9D). § 87(2)(b) The officers entered § 87(2)(b) on a routine business inspection and were not prompted from any observed behavior. PO Craig went down to the basement but PO Viera did not know what prompted him to go downstairs. After being in the basement for less than a minute PO Craig screamed. PO Viera went down to the basement to check on PO Craig while PO Okvist remained upstairs.

Once downstairs, PO Viera observed PO Craig in the process of handcuffing § 87(2)(b) who was laying on his chest on the ground. § 87(2)(b) and PO Craig were the only two people inside the basement. After less than a minute of being downstairs, approximately more than ten officers entered the basement. Sgt. Jerry Garcia responded to the location but PO Viera did not see Sgt. Garcia have any interaction with § 87(2)(b). Once the additional officers entered the basement, PO Viera went back upstairs. While inside the basement, PO Viera had no verbal or physical interaction with § 87(2)(b). He did not kick § 87(2)(b) in the back and did not observe any officer do so. PO Viera did not kick § 87(2)(b) about his body and did not observe any other officer kick § 87(2)(b). He did not observe PO Craig or any officer with his weapon drawn and pointed at § 87(2)(b). PO Viera did not kick or stomp § 87(2)(b) about his back, ribs, or his head, and did not observe any officer do so. PO Viera did not observe any officer strip search § 87(2)(b) in the basement. PO Viera exited the bodega and went back to his vehicle. PO Viera went back to the 77th Precinct stationhouse after the incident.

Subject Officer: SGT. JERRY GARCIA

- *Sgt. Jerry Garcia is a § 87(2)(b)-old Hispanic male, 6'1" tall, 240 lbs., with a bald head and brown eyes.*
- *On January 6, 2012, Sgt. Garcia worked from 5:15 p.m. to 2:12 a.m., assigned to Anti-Crime and Conditions. He was dressed in plainclothes, not assigned a partner, and was not assigned to a police vehicle.*

Memo Book

On January 6, 2012, at 9:30 p.m., a business inspection was conducted at § 87(2)(b) in Brooklyn. At 9:53 p.m., four individuals were arrested by conditions officers (encl. 10A-10B).

CCRB Statement

Sgt. Jerry Garcia was interviewed at the CCRB on March 6, 2013 (encl. 10C-10E). On January 6, 2012, at approximately 9:15 p.m., Sgt. Garcia was inside the 77th Precinct stationhouse, when PO Patrick Craig requested that additional officers at § 87(2)(b). Sgt. Garcia went to the location with other officers whom he also could not specify.

When he arrived at the location, PO Peter Behan gave him a quick overview of the situation. PO Behan reported that an individual, identified by the investigation as § 87(2)(b) had been observed smoking a marijuana joint in front of the location, who after the officers observed him, attempted to run inside the building. Sgt. Robert Maloney, identified by name by Sgt. Garcia, informed him that the location was a well-known drug prone location. Sgt.

Garcia entered the convenience bodega and a quick search was conducted of the location. Officers inspected the business license, and inspected the area where § 87(2)(b) had run to as it was believed that he had discarded some drugs. While inside, § 87(2)(b) was escorted up from the basement by PO Craig and PO Denis O'Mahoney, identified by name by Sgt. Garcia. PO Craig reported that § 87(2)(b) had attacked him with a knife downstairs. Sgt. Garcia entered the basement to check the area and saw nothing but tables and chairs. Sgt. Garcia was informed that drugs had been recovered from § 87(2)(b) in the stairwell as he was escorted up from the basement. While at the location, he did not observe any officer kick § 87(2)(b) in the back, in his head or about his body. Sgt. Garcia did not observe any officer with their weapons drawn when they arrived and did not observe any officer point their weapon at § 87(2)(b). Sgt. Garcia did not supervise any strip search of § 87(2)(b) at the location. He did not observe any injuries on § 87(2)(b) inspecting the basement, Sgt. Garcia left the location.

At the 77th Precinct stationhouse, an unspecified SNEU officer informed Sgt. Garcia that § 87(2)(b) was known to hide drugs on his person. Based on the report of § 87(2)(b)'s attempt to dispose of narcotics earlier and this information, Sgt. Garcia authorized a strip search, conducted by PO Craig, in the cell which yielded negative results.

Witness Officer: PO PETER BEHAN

- PO Peter Behan is a § 87(2)(b)-old white male, 5'9" tall, 130 lbs., with brown hair and blue eyes.
- On January 6, 2012, PO Behan worked from 5:30pm to 2:05 a.m., assigned to conditions with PO Devan Okvist, and PO Denis O'Mahoney. He was dressed in uniform and marked police van 855.

Memo Book

On January 6, 2012, at 9:49 p.m., PO Behan conducted a business inspection at § 87(2)(b). Four individuals were arrested. At 10:00 p.m., he arrived at the 77th Precinct stationhouse for arrest processing (encl. 11A-11B).

NYPD Arrest Reports

§ 87(2)(g)

CCRB Statement

PO Peter Behan was interviewed at the CCRB on July 17, 2012 (encl. 11Y-11Z). On January 6, 2012, at approximately 9:15 p.m., PO Behan received a call from PO Devon Okvist, who reported that he observed § 87(2)(b) smoking marijuana outside of § 87(2)(b) in Brooklyn. When he arrived, PO Okvist had § 87(2)(b) in handcuffs. PO Behan went to take hold of § 87(2)(b). Additional officers, whose names he did not recall, were inside the bodega conducting a business inspection. There were other civilians inside the bodega but he did not know what they were doing. PO Behan did not recall if he entered the bodega. PO Behan escorted § 87(2)(b) to the police van. While at the location, PO Behan did not kick or stomp on any civilian at the location, and did not observe any officer kick or stomp on any civilian at the location. He did not point his weapon nor did he observe any officer do so. PO Behan did not observe any officer conduct a search or strip search of any civilian at the location. PO Behan transported § 87(2)(b), § 87(2)(b), and § 87(2)(b) to the 77th Precinct stationhouse where he processed their arrests.

Witness Officer: PO DEVAN OKVIST

- PO Devan Okvist is a § 87(2)(b)-old white male, 5'11" tall, 205 lbs., with brown hair and brown eyes.

- On January 6, 2012, PO Okvist worked from 5:30 p.m. to 2:05 a.m., assigned to conditions, with PO Peter Behan. He was dressed in uniform and assigned marked police van 8556.

Memo Book

On January 6, 2012, at 9:45 p.m., a business inspection was conducted at § 87(2)(b) and a marijuana cigarette and a zip lock bag was recovered. At 9:53 p.m., both PO Behan and PO Craig had arrests (encl. 12A-12C).

CCRB Statement

PO Deven Okvist was interviewed at the CCRB on September 5, 2012 (encl. 12D-12F).

§ 87(2)(g) PO Okvist was walking by § 87(2)(b) by himself when he observed § 87(2)(b) standing behind the closed glass door of the bodega smoking what he believed to be a marijuana cigarette. PO Okvist did not recall if the cigarette was lit but identified the substance as marijuana due to the strong smell emitting from the bodega. PO Okvist did not observe § 87(2)(b) smoke from the cigarette. § 87(2)(b) observed PO Okvist and attempted to hide the cigarette in his hand. § 87(2)(b) went to walk away from the door but PO Okvist opened the door and trapped him in the space between the door and a wall of the bodega. PO Okvist entered the bodega and arrested § 87(2)(b).

PO Okvist observed approximately four other individuals inside the bodega. While PO Okvist was inside, PO Craig and PO Alex Viera entered the bodega. PO Okvist did not see what PO Craig and PO Viera did inside the bodega as he escorted § 87(2)(b) outside. PO Okvist remained outside for 30 seconds before PO Craig requested help over the radio. PO Okvist re-entered the bodega and went to the basement. Downstairs, he observed PO Craig and PO Viera struggling with § 87(2)(b). § 87(2)(b) was standing in a fighting position with his hands up. PO Okvist assisted the officers with getting § 87(2)(b) on the ground and handcuffing him. After § 87(2)(b) was placed in handcuffs, PO Okvist returned upstairs with § 87(2)(b) and brought him outside to the police vehicle. PO Okvist did not draw or point his weapon at § 87(2)(b) and did not observe any officer do so. PO Okvist did not kick, punch, or stomp § 87(2)(b) while in the basement and did not observe any officer do so. PO Okvist did not observe any officer perform a strip search of § 87(2)(b). PO Okvist did not have any further interaction with § 87(2)(b) after assisting in his arrest and transporting him to the 77th Precinct stationhouse.

Witness Officer: PO DENIS O'MAHONEY

- PO Denis O'Mahoney is a § 87(2)(b)-old white male, 6'1" tall, 175 lbs., with brown hair and green eyes.
- On January 6, 2012, PO O'Mahoney worked from 5:30 p.m. to 2:05 a.m., assigned to conditions with Sgt. Jerry Garcia. He was dressed in uniform and was not assigned to a police vehicle.

Memo Book

At 9:45 p.m., on January 6, 2012, PO O'Mahoney responded to § 87(2)(b) in Brooklyn due to a request for additional officers at the location. At 10:30 p.m., He returned to the 77th Precinct stationhouse (encl. 13A-13B).

CCRB Statement

PO Denis O'Mahoney was interviewed at the CCRB on March 29, 2013 (encl. 13C-13E).

§ 87(2)(g) PO O'Mahoney responded to the location with PO Peter Behan in a marked van. Once at the location, PO O'Mahoney proceeded to the basement. When he arrived in the basement, he observed PO Craig

with § 87(2)(b) who was handcuffed at this time. There were no other occupants inside the basement. It appeared to PO O'Mahoney that there had been gambling and drug use going on inside the basement, indicated by the cards and money on a table, as well as the marijuana bags, marijuana cigarettes, marijuana debris on the table, and a strong odor of marijuana. Several officers entered the basement after PO O'Mahoney but he did not recall which officers specifically. While inside the basement, PO O'Mahoney did not observe any officer kick § 87(2)(b) in his back, and did not observe any officer kick or stomp him about his head or ribs. He did not observe any officer point their weapon at § 87(2)(b). No strip search of § 87(2)(b) was conducted inside the basement. As he was being escorted up the stairs, § 87(2)(b) discarded a bag to his left onto the stairwell. PO O'Mahoney did not observe where § 87(2)(b) removed the bag from on his person. PO O'Mahoney recovered the bag and handed it over to PO Craig. The contents of the bag were later determined to be crack-cocaine. § 87(2)(b) was escorted out of the location, and transported to the 77th Precinct stationhouse.

Witness Officer: SGT. ROBERT MALONEY

- Sgt. Robert Maloney is a § 87(2)(b)-old white male, 5'7" tall, 160 lbs., with brown hair and blue eyes.
- On January 6, 2012, Sgt. Maloney worked from 10:00 a.m. to 10:27 p.m., assigned to Anti-Crime, PO Camacho and PO Afana. He was dressed in plainclothes and assigned to unmarked police vehicle § 87(2)(b).

Memo Book

Sgt. Maloney had no memo book entries relevant to the incident (encl. 14A-14B).

CCRB Statement

Sgt. Robert Maloney was interviewed at the CCRB on April 4, 2013 (encl. 14C-14D). Sgt. Maloney had no independent recollection of responding to the location. A brief overview of the incident did not aid in his recollection of the incident.

Officers Not Interviewed

PO José Camacho and PO Dany Fana were not interviewed as all subject officers had been identified and none of the officers interviewed indicated that they were present for the interaction between the initially responding officers and § 87(2)(b).

Medical Records

§ 87(2)(b) was admitted to § 87(2)(b) on § 87(2)(b). His chief complaint was that he was kicked and punched in the head several times on January 6, 2012. He complained of a headache, left head pain, and neck pain. A small abrasion was noted on the front of § 87(2)(b)'s head. A head CT found some swelling but no remarkable findings. § 87(2)(b) was diagnosed with a contusion to his forehead and was prescribed acetaminophen (encl. 15A-15S).

NYPD Documents

SPRINT Report

SPRINT report § 87(2)(b) indicated that on January 6, 2012, sectors 77E, 77K, 77SP7, and 77SP4 resumed patrol between 9:20 p.m. and 10:29 p.m. At 9:40 p.m. Sector 77SP7 accounted for all officers and noted no injuries. At 9:53 p.m., four individuals were arrested. Sector 77ST1 had a crime arrest at 12:40 a.m. (encl. 16C)

- § 87(2)(b) has filed the following CCRB complaints: § 87(2)(b)

Subject Officers CCRB History

- PO Craig has been a member of the service for five years and there is one substantiated CCRB allegation against him. For case 201201580, he received charges for an illegal frisk. The NYPD disposition was not available (encl. 1A).
- PO Viera has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1B).
- Sgt. Garcia has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1C).

Conclusion

Identification of Subject Officers

- PO Craig was identified by name by § 87(2)(b) after obtaining his name from his arrest documents. § 87(2)(g) PO Craig acknowledged his role in the apprehension and arrest of § 87(2)(b) § 87(2)(g)
- PO Viera was identified by the investigation through the use of NYPD documents. § 87(2)(g)
- Sgt. Garcia was identified throughout the course of the investigation using NYPD documents. § 87(2)(g) He acknowledged his presence at the incident location at the approximate time of § 87(2)(b)'s first strip search. § 87(2)(g)
- § 87(2)(b) was unable to describe the officers who punched and kicked while he laid on the ground. He was also unable to describe the officers who searched the areas of the basement. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(b) was not the owner nor was he a worker of the store. § 87(2)(g)

Allegation A – Force: Inside of § 87(2)(b) in Brooklyn, PO Patrick Craig pointed his gun at § 87(2)(b) and an individual named § 87(2)(b)

§ 87(2)(b) alleged that PO Craig entered into the basement with his gun drawn and pointed at him and § 87(2)(b). § 87(2)(b) denied pulling a knife on any officer at the location. § 87(2)(g)

§ 87(2)(b) PO Craig acknowledged that he drew his gun against § 87(2)(b) the sole person inside the basement other than himself, after § 87(2)(b) retrieved a ten-inch knife from the kitchenette and menaced him with it. Furthermore, a ten-inch knife was later vouchered into evidence for § 87(2)(b)'s arrest and he was eventually charged § 87(2)(a) 160.50

statements. § 87(2)(g)

Sgt. Garcia denied that any strip search of § 87(2)(b) had been conducted in the basement of § 87(2)(b) § 87(2)(g)

Allegation F – Abuse of Authority: At the 77th Precinct stationhouse, Sgt. Jerry Garcia authorized the strip search of § 87(2)(b)

§ 87(2)(b) alleged that at the stationhouse, a second strip search was conducted where he removed his clothing and underwear, and squatted as per the officer's instructions. Prior to his formal statement, § 87(2)(b) had not made a strip search allegation in either of his previous statements. § 87(2)(b) denied attempting to discard any narcotics at the location. § 87(2)(g)

Sgt. Garcia acknowledged that a strip search of § 87(2)(b) was conducted at the 77th Precinct stationhouse. Sgt. Garcia authorized a strip search, which is noted in the command log, after he had been advised by officers who observed that § 87(2)(b) had removed narcotics from his person and had attempted to discard them at the incident location. § 87(2)(g)

Additionally, Sgt. Garcia had been advised by an unspecified SNEU officer, assigned to the 77th Precinct, that § 87(2)(b) was known to conceal narcotics on his person. Furthermore, § 87(2)(b) arrest report noted that twenty-one twists of crack-cocaine were recovered during his arrest and vouchered after he had attempted to destroy them.

NYPD Patrol Guide 208-05 (encl. T-U) states a strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. § 87(2)(g)

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date